Privacy Policy

LAST UPDATED: OCTOBER 20, 2025

This privacy policy (this “Privacy Policy”) applies to your use of any websites, applications, or services provided, owned, or operated by Spira Arc Inc. or any of its affiliates (collectively, “Nado”). Nado values your privacy and the privacy of its other users (collectively, the “Users”) and wants you to be familiar with how Nado collects, uses, stores, and protects personal information from and about you. By accessing or using Nado’s websites, applications, or services and disclosing personal information, you are accepting the practices described in this Privacy Policy, to the extent permitted by law.

The data controller for the purposes of this Privacy Policy is Spira Arc Inc., a corporation organized and existing under the laws of the Republic of Panama, with its registered office at PH The Century Tower, Office 317, Betania, Vía Ricardo J. Alfaro, 07095 Panama City, Panama. You may contact us at info@nado.xyz for any data protection inquiries.

When you use Nado’s websites, applications, or services, Nado may collect certain information, such as your IP address, browser type, device information, and usage data. This information is used to maintain the security and performance of our websites, applications, and services, to detect unauthorized access, and to determine your eligibility to use Nado’s offerings in compliance with applicable law.

Nado is aware of its responsibilities to handle your personal information with care, to keep it secure, and to comply with applicable privacy and data protection laws, including Law 81 of March 26, 2019, on the Protection of Personal Data and its Regulations, the Executive Decree 285 of May 28, 2021 (the "Data Protection Law"),

Information about you

Nado obtains information about you through the means discussed below. Nado requires certain information to provide its services and fulfill contractual or legal obligations. If you choose not to provide Nado with such information, or request the deletion of such information, you may no longer be able to access or use some or all of Nado’s websites, applications, or services.

User-provided Information

You may provide Nado with certain personal information when using our websites, applications, or services. This may include your email address, digital asset wallet address, or any other information that you choose to provide us.

To exercise your rights to access, review, update, delete, or otherwise limit Nado's use of the personal information you have provided, you may contact Nado at info@nado.xyz. Please include your email address associated with your account, your full name, and the details of your request.

To protect your privacy and security, Nado may take steps to verify your identity before processing your request. Nado may also use trusted third-party verification providers to assist in this process and will ensure that any such provider handles personal information solely for the purpose of identity verification.

Automatically Collected Information

When you access or use Nado's websites, applications, or services, Nado may automatically collect information about your system and activity using cookies or other types of data collection technologies. This information may include your IP address, device and browser type and identifiers, referring and exit page addresses, software and system type, and information about your access and use of Nado's websites, applications, and services.

For more information about Nado's use of cookies and other data collection technologies, the purposes for which they are used, and your options to manage them, please refer to our Cookie Policy.

Use of Personal Information

Nado uses the personal information it collects to: (a) operate, maintain, enhance, provide, create, and develop Nado's websites, applications, and services; (b) provide security for Nado's websites, applications, and services; (c) manage relationships and communications with Users; (d) improve Users' experience when they access or use Nado's websites, applications, and services; (e) prevent, detect, and address fraud, abuse, or other harmful activity; and (f) analyze and understand the usage trends of its Users.

Nado processes personal information only when it has a lawful basis to do so under applicable data protection laws. These bases include: (a) when you have given Nado consent; (b) to perform Nado's contractual obligations or to take steps prior to entering into a contract; (c) to comply with applicable laws or lawful requests from public or law enforcement authorities; and (d) to pursue Nado's reasonable business interests, provided that such processing does not override your fundamental rights and freedoms.

Nado may share certain personal information with third-party service providers acting on Nado's behalf. Such disclosures may occur for the following purposes: (a) to provide website hosting, maintenance, and security services; (b) to conduct data analysis and create reports; (c) to offer certain functionality; and (d) to assist Nado in improving Nado's websites, applications, and services. Nado ensures that such service providers process personal information in accordance with Nado's instruction and this Privacy Policy. Such service

providers are not permitted to use personal information for any other purpose and are required to implement reasonable confidentiality measures to protect personal information.

In certain cases, Nado may be required by law to collect, use, or disclose personal information, such as to comply with lawful requests from public or law enforcement authorities. Nado may also disclose personal information if Nado believes, in good faith, that such disclosure is necessary to comply with applicable laws or regulations, or to respond to a court order, subpoena, warrant, or other lawful request from a competent authority, and only to the extent required by such obligation.

Nado may disclose personal information that Nado believes, in good faith, is appropriate or necessary to: (a) protect Nado from potential liability or prevent fraudulent, abusive, or unlawful uses; (b) investigate and defend Nado against third-party claims or allegations; (c) protect the security and integrity of Nado and its websites, applications, and services; or (d) protect the rights, property, or safety of Nado, its Users, or others, in each case only as permitted by applicable law.

Other than as set out in this Privacy Policy, Nado will provide notice when personal information about you may be shared with third parties and, where reasonably possible, offer you an opportunity to choose not to share such personal information.

Non-personal Information

Nado may share or disclose non-personal data, such as aggregated or anonymized information. This information does not identify any individual User.

Global Operations and Privacy

As Nado operates globally, personal information may be transferred, stored, used, and processed in countries other than your own. Where required by applicable law, you consent to the transfer of your personal information to jurisdictions in which Nado conducts business or provides services. Nado takes appropriate measures, consistent with applicable law, to ensure that any international transfers of personal information are subject to suitable safeguards designed to protect your privacy and the security of your data.

Some of these countries may have privacy and data protection laws that differ from those of your jurisdiction, including with respect to when government authorities may access personal information.

In addition to the rights described elsewhere in this Privacy Policy, Brazilian Users have the rights set out in Brazil's General Data Protection Law (the "LGPD"), including the right to confirm the existence of processing, request data portability, request anonymization, blocking, or deletion of unnecessary or excessive data, and obtain information about public or private entities with which their data has been shared. Nado will handle such requests in accordance with the requirements of the LGPD.

To protect your privacy and security, Nado may take steps to verify your identity before processing any request related to your personal information. Nado may also use trusted third-party verification providers to assist in this process and will ensure that any such provider handles personal information solely for the purpose of identity verification.

Retention of your Information

Nado retains personal information related to your access and use of Nado's websites, applications, and services: (a) for as long as necessary to fulfill the purposes described in this Privacy Policy; (b) for the period required or permitted by applicable law, such as for tax, accounting, or compliance purposes; or (c) as otherwise communicated to you. When you request that Nado delete your personal information, all data that is not required or permitted to be retained by law will be deleted or anonymized in accordance with applicable data-protection requirements.

Third-Party Services and Website

Nado's websites, applications, and services may link to third-party websites, applications, or services. The privacy practices of those third parties are not governed by this Privacy Policy. Nado is not responsible for the content, security, or privacy practices of those third parties. Nado encourages you to review the privacy policies of any third-party websites, applications, and services to understand their privacy practices.

Analytics Providers

Nado may use third-party analytics services in connection with Nado's websites, applications, and services. These providers may use cookies or other data collection technologies to analyze and evaluate your access and use of Nado's websites, applications, and services.

Nado may work with third-party ad networks, advertisers, and advertising analytics providers to deliver and measure advertisements on and off Nado's websites, applications, and services. Nado may share data, such as cookie or mobile advertisement identifiers, in order to enable advertising activity (including to understand how you respond to advertisements and to deliver relevant advertisements).

This Privacy Policy does not govern the use of data by such third parties. Nado encourages you review the privacy policies of any third parties to understand their privacy practices.

Data Security

Nado uses various measures to protect the integrity, confidentiality, and security of personal information. These measures may vary based on the sensitivity of your information and the risks involved in processing it. While Nado continually works to safeguard your information, no

security precautions or systems are completely secure. Nado therefore cannot guarantee the absolute security of any information transmitted to it or stored by it.

Your Rights and Choices

You have certain rights regarding your personal information that Nado collects and processes. You may exercise these rights using the contact information provided in this Policy.

Your rights include: (a) the right to access your personal information and request details about how Nado processes it; (b) the right to request the correction of inaccurate personal information; (c) the right to request the deletion of your personal information, subject to Nado's legal obligations and legitimate business interests; (d) the right to object to or restrict certain processing activities; and (e) the right to data portability.

You may opt-out of receiving marketing communications that Nado may send to you by email at any time by clicking the "unsubscribe" link in any such email. Please note that even if you opt-out of marketing communications, Nado may still send you emails with important notifications and updates with respect to Nado's websites, applications, and services.

If you wish to delete your account, you may do so through your account settings or by contacting us. Please note that some information may be retained in our records to comply with legal obligations, resolve disputes, enforce our agreements, or protect our legitimate business interests.

Children's Privacy

Nado's websites, applications, and services are intended for individuals who have reached the legal age of majority in the jurisdiction in which they reside. By accessing or using Nado's websites, applications, or services, you represent that you meet this age requirement.

Nado does not knowingly collect personal information from individuals who do not meet this age requirement or from children under the age of 13. If Nado learns that personal information of such persons has inadvertently been collected, Nado will take appropriate steps to delete this information in accordance with applicable law.

If you believe personal information has been collected from an individual who does not meet the age requirement or from a child under the age of 13, please contact Nado at info@nado.xyz to have such personal information deleted and any associated account(s) closed.

Merger or Sale

In the event that Nado, or substantially all of its assets, is acquired by, merged with, or transferred to a third-party, or in connection with a contemplated investment or change of ownership transaction, Nado may transfer or assign the personal information collected from Users as part of that transaction, including in the course of any related diligence process.

Changes and Updates to this Privacy Policy

Nado reserves the right, in its sole discretion, to modify this Privacy Policy from time to time. If Nado makes any changes to this Privacy Policy, Nado will provide you with notice of such changes, which notice may be provided by updating the "Last Updated" date at the top of this Privacy Policy. Unless Nado states otherwise in any such notice, any changes made to this Privacy Policy shall be effective immediately, and your continued use of Nado's website, applications, or services after Nado provides such notice will confirm your acceptance of the changes. If you do not agree to the revised Privacy Policy, then you must stop using Nado's website, applications, and services immediately upon receipt of such notice.

Governing Law and Dispute Resolution

This Privacy Policy shall be governed by and construed in accordance with the laws of Panama, without regard to its conflict of law provisions. To the extent permitted by applicable law, any dispute, controversy or claim arising out of or relating to this Privacy Policy, or the breach, termination or invalidity thereof, shall be settled by binding arbitration in Panama City, Panama, in accordance with the Rules of Arbitration of the International Chamber of Commerce by one or more arbitrators appointed in accordance with said Rules.

The arbitration shall be conducted in the English language. The arbitral tribunal shall consist of three arbitrators, with each party appointing one arbitrator and the two party-appointed arbitrators selecting the third arbitrator who shall serve as the presiding arbitrator. The award rendered by the arbitrators shall be final and binding on the parties, and judgment upon the award may be entered in any court having jurisdiction thereof.

Nothing in this Privacy Policy shall limit your rights under the Data Protection Law, including your right to file complaints with the National Authority for Transparency and Access to Information (ANTAI) for matters related to personal data protection. However, disputes arising from other contractual matters shall be resolved through arbitration.

Nado Contact Information

Please contact Nado with any questions or comments about this Privacy Policy at info@nado.xyz.